



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 6TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 8TH DAY OF FEBRUARY, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor / Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA
HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

NONE

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Resolution No. 051-2021

RESOLUTION ADOPTING AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL TO COMMERCIAL LAND USE OF THE MORE OR LESS SEVEN HUNDRED FIFTY (750) SQUARE METERS LOT UNDER TCT NO. 079-2017001184 REGISTERED IN THE NAME OF SPOUSES DEMETRIO B. BARRIOS, JR. AND FRANA M. BARRIOS LOCATED AT PUROK 2, BARANGAY MAGANG, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 FOR THE CONSTRUCTION OF TWO (2) STOREY COMMERCIAL BUILDING

WHEREAS, pursuant to Section 20 of the Local Government Code of 1991, the municipality through an ordinance passed by the sanggunian after conducting public hearings for the purpose, authorize the reclassification of land within its territorial jurisdiction;

WHEREAS, the Sangguniang Bayan of Daet received a letter from Sps. Demetrio, Jr. and Frana Barrios requesting for reclassification of lot at Purok 2, Barangay Magang from agricultural zone (cocoland) to commercial land use and endorsing the same to DHSUD the construction of Two (2) Storey Commercial Building;

WHEREAS, Mr. Nelvin C. Asuncion, representative of Sps. Demetrio, Jr. and Frana Barrios appeared before the honorable body during the en banc meeting held last September 7, 2020 and discussed the commercial building project;

WHEREAS, submitted to this office are the following documents in support to their application:

1. Certification from barangay interposing no objection to the reclassification of the land;
2. Certification from MPDO stating that the project is outside the 20 meter road-right-of-way clearance in the national road reckoned 10.00 meters as per defined by the Approved Parcellary Survey of the DPWH and not needed for any future public use or public service;
3. Municipal Agriculturist certification that per ocular inspection conducted, the subject land is surrounded by residential lots and provincial road and ceases to be economically feasible and sound for agricultural purposes;
4. DAR certification that the land is not covered by the Comprehensive Agrarian Reform Program;
5. NIA certification of non-irrigated land;
6. PCA certification of non-coconut productivity;

WHEREAS, the submitted Resolution No. 29 s. 2020 dated September 16, 2020 from Barangay Magang indicated that no objection raised for the conversion of the subject land from agricultural to commercial land and within the commercial area of the barangay;

WHEREAS, under the proposed Comprehensive Land Use Plan of Daet the subject lot falls within the mixed use development, and since CLUP of Daet is for updating, an ordinance reclassifying the lot is needed not to impede the project;

NOW THEREFORE, after due deliberation, on motion of Councilor Rossano C. Valencia, seconded by Councilors William Carlo R. Avila, Ma. Eliza H. Llovit, Apolonio B. Panong, Nestor F. Dalida, Tomasito Santiago C. Turingan, Judy Rose T. Gallardo and Pedro S. Musa;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 398-2021

AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL TO COMMERCIAL LAND USE OF THE MORE OR LESS SEVEN HUNDRED FIFTY (750) SQUARE METERS LOT UNDER TCT NO. 079-2017001184 REGISTERED IN THE NAME OF SPOUSES DEMETRIO B. BARRIOS, JR. AND FRANA M. BARRIOS LOCATED AT PUROK 2, BARANGAY MAGANG, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 FOR THE CONSTRUCTION OF TWO (2) STOREY COMMERCIAL BUILDING

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. AUTHORITY. It is hereby authorized to reclassify the SEVEN HUNDRED FIFTY (750) SQUARE METERS LOT UNDER TCT NO. 079-2017001184 registered in the name of Sps. Demetrio, Jr. and Frana Barrios located at Purok 2, Barangay Magang, Daet, Camarines Norte from agricultural land use to commercial land use.



SECTION 2. PURPOSE. The subject land shall be used for commercial purposes subject to compliance with the standards set by the Department of Human Settlement and Urban Development (DSHUD) and other existing laws.

SECTION 3. REPEALING CLAUSE. All ordinances or any part thereof which are inconsistent with any provision or provisions of this ordinance are hereby repealed or modified accordingly.

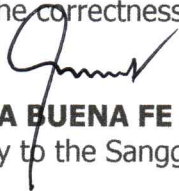
SECTION 4. EFFECTIVITY. This ordinance shall take effect upon its approval and compliance to rules of posting and publication.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof, all others concerned for their information and appropriate action.

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan


COUN. ROSSANO C. VALENCIA
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: FEB 11 2021